

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Erasure against SENER GRUPO DE INGENIERÍA, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that they have sent a request for the erasure of their data to the respondent on February 8, March 5, and May 5, 2023, via emails sent to the email address ***EMAIL.1, without having received a response.

They provide a copy of the emails sent.

SECOND: On June 16, 2023, this Agency decided to archive the complaint based on:

“...In this case, after analyzing the documents provided and the circumstances involved, there are no rational indications of the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency, therefore, in accordance with the provisions of Article 65.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights, IT IS AGREED to inadmit the complaint...”

THIRD: The complainant, disagreeing with the resolution that inadmitted their complaint, submits a request for reconsideration, the favorable outcome of which leads to the current complaint and concludes:

“...On June 23, 2023, the appellant submitted a document, registered with the Agency on June 23, 2023, in which they file a request for reconsideration indicating that there is an error in the contested resolution, as it states that they sent their erasure request to the email address ***EMAIL.1, whereas they sent it to ***EMAIL.2, which is the email address listed in the Privacy Policy of the respondent as appropriate for exercising rights (...) In this case, along with the request for reconsideration, relevant allegations have been made regarding the matters raised, which must be analyzed by the General Subdirectorate of Data Inspection. Consequently, the Director of the Spanish Data Protection Agency RESOLVES: FIRST: TO GRANT the request for reconsideration filed...”

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FOURTH: The complaint, the request for reconsideration submitted, and the favorable resolution of that request are forwarded to the respondent so that, within a period of fifteen working days, they may present any allegations they deem appropriate.

The respondent, after explaining what happened, certifies that they have addressed the right by sending a response to the complainant.

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of ten working days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection

Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding their obligations, as well as to address complaints filed by a data subject and investigate, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR.

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among which is included "ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in the event that it does not intend to comply with such a request.

The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

a) for exercising the right of freedom of expression and information;

b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or

e) for the establishment, exercise or defense of legal claims."

V

Conclusion

In the case analyzed here, the complainant exercised their right to erasure, and after the period established in the aforementioned regulations elapsed, their request did not receive the legally required response, as the requested access was not provided.

The aforementioned regulations do not allow the request to be disregarded as if it had not been made, leaving it without the response that controllers are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

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In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, made precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT for formal reasons, the claim made by A.A.A., against SENER GRUPO DE INGENIERÍA, S.A. However, it is not appropriate to issue a new certification by the responding party, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to SENER GRUPO DE INGENIERÍA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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